

**FIRST INFORMATION REPORT
(U/s 173 B.N.S.S.)**

Book No. **1428**

Serial No. **016**

1. District: PS: Year: FIR No.: Date:
New Delhi CBI/ACB/New Delhi 2024 RC0032024A0044 12.11.2024
2. (1) Act - IPC Sections: 120-B r/w 420
(2) Act - PC Act 1988 Sections: 7 and 13(2) r/w 13(1)(d)
(3) Act - Sections:
(4) Other Acts & Sections-
3. (a) Suspected Offence- **Criminal Conspiracy & Cheating, obtaining of undue advantage by public servants and Criminal Misconduct.**
(b) From the year 2012 to 2019
(c) Information received at PS: **CBI, ACB, New Delhi** Dated: **06.08.2021**
Entry No. **5** Date: **12.11.2024** Time: **01:40 P.M.**
4. Type of information – (Written / Oral): **Written**
5. Place of occurrence **Delhi**
(a) Direction & Distance from

Beat No. -

(b) Address:

(c) In case, outside the limit of this Police Station, then

Name of PS - District -

6. Complainant / Informant: credible source information

(a) Name : Shri V.K. Parashar

(b) Father's/Husband's Name : N. A.

(c) Date of Birth :

(d) Nationality : Indian

(e) Passport No. **NA** Date of Issue **NA** - Place of issue **NA**

(f) Profession : **Executive Engineer (V)-21**

(g) Address : O/o the Chief Vigilance Officer, CPWD, Nirman Bhawan,
New Delhi - 110011

7. Details of known/suspected/unknown accused with full particulars: -
(Attached separate sheet, if necessary)

1. Suresh Kumar Sinha, the then Executive Engineer (Civil), South West Road-I (M-113) Division, PWD, GNCTD.
2. Jai Pal Vashist, the then Executive Engineer (Civil), South West Road-I (M-113) Division, PWD, GNCTD.
3. Kamal Singh, the then Executive Engineer (Civil), South West Road-I (M-113) Division, PWD, GNCTD.
4. Imtiyaj Ahamad, the then Junior Engineer (Civil), South West Road-I (M-113) Division, PWD, GNCTD.

5. Abbal Singh Yadav, the then Assistant Engineer (Civil), South West Road-I (M-113) Division, PWD, GNCTD.
6. Naresh Kumar Suhag, the then Junior Engineer (Civil), South West Road-I (M-113) Division, PWD, GNCTD.
7. O. P. Verma, the then Assistant Engineer (Civil), South West Road-I (M-113) Division, PWD, GNCTD.
8. Raghvendra, the then Assistant Engineer (Civil), South West Road-I (M-113) Division, PWD, GNCTD.
9. Ravinder Kumar, the then Junior Engineer (Civil), South West Road-I (M-113) Division, PWD, GNCTD.
10. Sandeep Gupta, the then Assistant Engineer (Civil), South West Road-I (M-113) Division, PWD, GNCTD.
11. Shikhar Tyagi, the then Junior Engineer (Civil), South West Road-I (M-113) Division, PWD, GNCTD.
12. M/s K. L. Arora & Sons, partner Dheeraj Arora & others, B-90, Surya Nagar, Ghaziabad, U. P.

8. Reasons for delay in reporting by the complainant/informant: -

No delay

9. Particulars of properties Stolen (Attach separate sheet, if necessary):

10. Total value of property stolen: -

11. Inquest Report/U.D. Case No., if any,: -

12. First information contents (Attach separate sheet, if required):

A written complaint dated 06.08.2021 from Sh. V. K. Parashar, Executive Engineer (V)-21, CPWD, O/o the CVO, Nirman Bhawan, New Delhi-110011 was received in CBI, ACB, New Delhi on 06.08.2021 and copy thereof is enclosed herewith.

The Complaint, prima facie, discloses commission of offence punishable U/s 120-B r/w 420 IPC, Sec. 7 and 13(2) r/w 13(1)(d) of PC Act 1988 on the part of (1) Suresh Kumar Sinha, the then Executive Engineer (Civil), (2) Jai Pal Vashist, the then Executive Engineer (Civil), (3) Kamal Singh, the then Executive Engineer (Civil), (4) Imtiyaj Ahamad, the then Junior Engineer (Civil), (5) Abbai Singh Yadav, the then Assistant Engineer (Civil), (6) Naresh Kumar Suhag, the then Junior Engineer (Civil), (7) O. P. Verma, the then Assistant Engineer (Civil), (8) Raghvendra, the then Assistant Engineer (Civil), (9) Ravinder Kumar, the then Junior Engineer (Civil), (10) Sandeep Gupta, the then Assistant Engineer (Civil), (11) Shikhar Tyagi, the then Junior Engineer (Civil), all from South West Road-I (M-113) Division, PWD, GNCTD and (12) M/s K. L. Arora & Sons, partner Dheeraj Arora & others, B-90, Surya Nagar, Ghaziabad, U. P.

Therefore, a regular case U/s 120-B r/w 420 IPC, Sec. 7 and 13(2) r/w 13(1)(d) of PC Act 1988 is registered against above mentioned and entrusted to Sh. Mukesh Mishra, Inspector, CBI, ACB, New Delhi for investigation.

CA-545721

Confidential/By speed post

File No. 10/V-21/(A-2)/2021-VS. I | 1260
Government of India
Central Public Works Department
Office of CVO
Nirman Bhawan, New Delhi-110011

Dated: 06/08/2021

To,

✓ The Head of Branch
Central Bureau of Investigation
Anti-Corruption Branch
Plot No.5-B, 1st Floor, CGO Complex
Lodhi Road, New Delhi-110003

Sub- Work of providing remedial measures for stopping vibration and noise due to flyover to Outer Ring Road, Ber Sarai, Munirka and Vasant Vihar- reg. fraudulent payments and loss to the Government etc.

A complaint was received in Vigilance Unit CPWD from Dy. Secretary (Vigilance) PWD, GNCTD vide letter No.10(99)/PWD-I/Vig. /Investigation/QAU/2020/ 10916-17 dated 18.11.2020 regarding the subject work wherein it is alleged that payment to the contractor has been made against false/fake measurements by the PWD officials.

2. During preliminary investigation by the Vigilance Unit, CPWD it is observed that:

(i) Fraudulent Payment of Rs.40,50,276/- made to the contractor M/s K.L. Arora & Sons by the PWD officials against Agreement item No.3 .

The work for which complaint has been submitted to Vigilance Unit by Secretary, PWD, GNCTD was executed under Agreement No.112/EE/M-113/PWD/2012-13 by the Agency M/s K.L. Arora & Sons for tendered amount of Rs.3,98,43,719/-. The Final Bill amounting to Rs.5,09,13,077/- was paid to the Agency on 11.09.2015. (C.V. No.47 dated 11.09.2015).

As observed from the reports submitted by the Executive Engineer, South West Road-I, PWD, GNCTD vide letter dated 25.1.2021, 27.2.2021 and 2.3.2021, Agreement Item No.3 of P/F Rabbit Wire mesh with nails over road surface was not provided at site of work, but was paid to the Agency under various bills, the details of which are as under:

Mo DIG CBI/ACB, Delhi

No. 2149

Dt. 6/8/2021

for Scrutiny
PIS

6/8/21

Imr. S.K. Bhatia

Agmt. Item No. & Location	Sr. No. of Bill	Ref. of CMB where Agmt. Items measured	Name of JE recording the measurement	Name of AE	Name of EE making payment
3 (Munirka, Ber Sarai) Flyover	Ist RA	CMB 36/Pg. 2,4, 6, 8	Sh. Naresh Suhag	Sh. Abbai Singh Yadav (Retd.)	Sh. Kamal Singh (Retired)
3 (Munirka, Ber Sarai) flyover	IInd R/A	CMB 37/Pg. 2,4, 7,11,13,17,19 21,29	-	Sh. Sandeep Gupta	Sh. Kamal Singh (Retired)
3 (Masood pur) flyover	IIIrd R/A	CMB 41/Pg. 6, 11, 13	Pg.6 Sh. Imtiaz Ahmed Pg.11,13 Sh. Sandeep Gupta	Sh. O.P. Verma (Retired)	Sh. Kamal Singh (Retired)
3 (Munirka) flyover	IVth R/A	CMB 62/Pg. 5,6, 7, 10	Pg.5,6 & 7 Sh. Sandeep Gupta Pg.10 Sh. Imtiaz Ahmed	Sh. O.P. Verma (Retired)	Sh. J.P. Vashist (Retired)
3 -----	Vth & Final	CMB 182 No measurement recorded for Agmt item no.3	Sh. Ravinder Kumar	Sh. Sandeep Gupta	Sh. J.P. Vashist (Retired)

Thus, fraudulent payment of Rs.40.5 lakh seems to have been made by the above PWD officials against false/fake measurements.

(ii) Fraudulent Payment of Rs.524400/- by making forged entry/manipulation in record.

At page 28 of CMB 37 Shri Sandeep Gupta, AE has revised the measurement for Agmt. Item No.3 and deducted the quantity of 14452.18 sqm paid in 1st R/A bill instead of deducting 21736.69 sqm, thus allowing an over payment for 7284.51sqm of Rabbit Wire mesh amounting to Rs.524400/-. This was not taken notice by Shri Prem Chand SDC, Shri Hari Om, Auditor and Shri Ashok Kumar, Assistant Accounts Officer, who processed the bill for payment, thus allowing an overpayment of Rs.524400/-, to the contractor fraudulently.

(iii) Award of work at Masood Pur flyover to new Agency before completion of Defect liability period of M/s K.L.Arora & Sons thereby providing undue benefit to the Agency M/s K.L.Arora & Sons and loss to the Government.

The actual date of completion of work "Providing remedial measures for stopping vibration and noise due to flyover to Outer Ring Road, Ber Sarai, Munirka and Vasant Vihar"

executed under Agreement No.112/EE-M-113(N)/PWD/2012-13 was 28.5.2015. Agreement's additional condition at page 69 of the Agreement (copy of Agreement enclosed) for maintenance of Mastic Work states that "Defect liability period for maintenance of Mastic work shall be 5 years calculated from the completion of construction work." As the said work was completed on 28.5.2015, the mastic work was to be maintained by the Agency M/s K.L. Arora & Sons up to 27.5.2020 under Defect Liability Period. Whereas the Preliminary Estimate for replacing this Mastic work on Masoodpur flyover was initiated by Shri Shikhar, JE/Sub-Divn.5/SWR-I, PWD, and Shri Raghvendra, A.E. Sub-Divn.5/SWR-I, PWD, for A/A & E/S of the competent authority. This Preliminary Estimate amounting to Rs.29,16,300/- was processed and sanctioned on 27.8.2018 by Shri S.K. Sinha, Executive Engineer, SWR-I without verifying the details. In the History Sheet of this Preliminary Estimate, it was mentioned that the work of Mastic was done on Masoodpur flyover 5 years ago. The work against this sanction was executed by Agency M/s Sharma Construction Co. under agreement No.87/EE/PWD/SWR-I/05/2018-19 with date of start and completion as 5.11.2018 and 19.11.2018 and paid vide CMB 929 for an amount of Rs.21,67,665/-. The fact was that Mastic Work was within the Defect Liability Period of Agency M/s K. L. Arora & Sons and should have been rectified through that agency or at their risk and cost.

The work under Agreement No.87/EE/PWD/SWR-I/05/2018-19 was executed under Supervision of Shri Shikhar Tyagi, JE(C), Shri Raghvendra, AE(C) & Shri S.K. Sinha, EE(C)

Due to above act of Shri Shikhar Tyagi, JE(C), Shri Raghvendra, AE(C) and Shri S.K. Sinha, EE(C), the government had to suffer an expenditure of Rs.21,67,665/- for the work which should have been got done through the agency M/s K. L. Arora & Sons under their Defect Liability clause of the agreement or at their risk and cost.

Thus, these CPWD officials seem to have passed an undue benefit to M/s K.L.Arora & Sons by not ensuring repair of defects under defect liability period and causing loss to the Government by making an expenditure of Rs.21.67 Lac.

3. The allegations and the preliminary findings reveal that the matter involves offences such as corruption, cheating, forgery for the purpose of cheating, falsification of record, criminal breach of trust punishable under the law. The allegations are such that truth cannot be ascertained without making inquiries from the non-official persons or without examination of non-government records, etc.

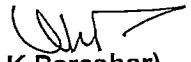
Para 5.1.1 of Central Vigilance Manual, 2017 states that as a general rule, investigation into the allegations of the aforesaid types should be entrusted to the CBI. Hence, as per the aforesaid provisions of Central Vigilance Manual, 2017, the case is entrusted to the Central Bureau of Investigation with request to take up the investigation at the earliest to prevent any tempering of the evidence.

File No. 10/V-21/(A-2)/2021-VS. I (Page 1 to 376) containing complaint received from Dy. Secretary (Vig./PWD) and relevant reports/documents received from the concerned PWD Division GNCTD, Copy of Agreement No. 87/EE/SWR-I/18-19 and Agreement No. 112/PWD M-113/2012-13 are enclosed and forwarded herewith for further investigation and necessary action please.

If your office requires any assistance, any record / information, please contact O/o The Dy. CVO, PWD, GNCTD, 12th Floor, MSO Building, IP Estate, New Delhi or Executive Engineer, SWR-I, PWD, GNCTD, Brar Square, Delhi Cantt, New Delhi.

This issues with the approval of DG, CPWD, New Delhi.

Encls.: - As above.


(V.K.Parashar)
Executive Engineer (V)-21

13. Action taken : Since the above information reveals commission of offence (s) u/s as mentioned at Item no. 2

(1) Registered the case and took up the investigation or

Regular Case is registered

(2) Directed (Name of IO): Rank: No. Took up for investigation

Shri Mukesh Mishra

Inspector, CBI, ACB, Delhi

(3) Refused investigation due to or

(4) Transferred to PS - District - on point of jurisdiction -

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant


Signature of Officer in-charge
Police Station:
Name: **Rishikesh Sonawane, IPS**
Rank: **Supdt. of Police**
CBI:ACB: Delhi

15. Date and time of dispatch to the Court

(RISHIKESH SONAWANE, IPS)
Superintendent of Police
CBI, ACB, New Delhi

Signature of recording Officer with date